

UNITED STATES PATENT AND TRADEMARK OFFICE

In the Matter of:

Kelly D. Talcott,

Respondent

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Proceeding No. D2025-03

FINAL ORDER PURSUANT TO 37 C.F.R. § 11.24

Pursuant to 37 C.F.R. § 11.24, Kelly D. Talcott (“Respondent”) is hereby excluded from the practice of patent, trademark, and other non-patent law before the United States Patent and Trademark Office (“USPTO” or “Office”), for violation of 37 C.F.R. § 11.804(h).

Background

On December 6, 2024, a “Notice and Order Pursuant to 37 C.F.R. § 11.24” (“Notice and Order”) was sent by certified mail (receipt nos. 7021 2720 0002 1228 6431, 7021 2720 0002 1228 6448 and 7021 2720 0002 1228 6455) notifying Respondent that the Director of the Office of Enrollment and Discipline (“OED Director”) had filed a “Complaint for Reciprocal Discipline Pursuant to 37 C.F.R. §§ 11.24 and 11.34” (“Complaint”) requesting that the Director of the United States Patent and Trademark Office impose reciprocal discipline upon Respondent identical to the discipline imposed by the June 30, 2021 Order of the Supreme Court of the State of New York Appellate Division: Second Judicial Department in *In re Talcott*, 2020-07319, disbarring Respondent from the practice of law in that jurisdiction. The Notice and Order provided Respondent an opportunity to file, within forty (40) days, a response opposing the imposition of reciprocal discipline identical to that imposed by the June 30, 2021 Order of the Supreme Court of the State of New York Appellate Division: Second Judicial Department in *In re Talcott*, 2020-07319, based on one or more of the reasons provided in 37 C.F.R.

§ 11.24(d)(1).

The Notice and Order was not able to be delivered to the Respondent. The Notice and Order was thus also published in the Official Gazette on February 11, 2025 and February 18, 2025. Respondent has not filed a response to the Notice and Order.

Analysis

In light of Respondent's failure to file a response, it is hereby determined that there is no genuine issue of material fact under 37 C.F.R. § 11.24(d) and Respondent's exclusion from the practice of patent, trademark and other non-patent matters before the USPTO is the appropriate discipline.

ACCORDINGLY, it is hereby **ORDERED** that:

1. Respondent is excluded from the practice of patent, trademark, and other non-patent law before the USPTO;
2. The OED Director shall electronically publish the Final Order at OED's electronic FOIA Reading Room, which is publicly accessible at: <http://foiadocuments.uspto.gov>;
3. The OED Director publish a notice in the *Official Gazette* materially consistent with the following:

Notice of Exclusion

This notice concerns Kelly D. Talcott of Sea Cliff, New York, who is a registered patent attorney (Registration Number 39,852). In a reciprocal disciplinary proceeding, the Director of the United States Patent and Trademark Office ("USPTO") has ordered that Mr. Talcott be excluded from practice before the USPTO in patent, trademark, and other non-patent matters for violating 37 C.F.R. § 11.804(h), predicated upon being disbarred from the practice of law by a duly constituted authority of a State.

By order to show cause dated July 29, 2019, in a separate proceeding under Appellate Division Docket No. 2019-02627, the Supreme Court of the State of New York Appellate Division: Second Judicial Department, suspended Mr. Talcott from the practice of law, pursuant to Judiciary Law

§ 90(4)(f) and 22 NYCRR 1240.12(c)(2)(ii), based upon his conviction of a serious crime. On June 3, 2020, under Appellate Division Docket No. 2019-02627, the Supreme Court of the State of New York Appellate Division: Second Judicial Department suspended Mr. Talcott from the practice of law for a period of one year, effective immediately, without credit for the time Mr. Talcott had already served under the interim suspension imposed by its order to show cause dated July 29, 2019 (*Matter of Talcott*, 184 AD3d 185).

On October 1, 2020, the Grievance Committee for the Tenth Judicial District served Mr. Talcott with a notice of petition and verified petition, both dated May 4, 2020, containing six charges of professional misconduct, which alleged, *inter alia*, that Mr. Talcott misappropriated funds entrusted to him as a fiduciary incident to his practice of law, made cash withdrawals from his attorney special account, failed to render an account of his attorney special account, failed to maintain required bank and bookkeeping records, failed to cooperate with the Grievance Committee in its investigation, thereby engaging in conduct prejudicial to the administration of justice, and based on all of the foregoing, engaged in conduct that adversely reflects on his fitness as a lawyer. The notice of petition directed Mr. Talcott to serve and file his answer to the verified petition within 20 days after service upon him of the verified petition. Mr. Talcott neither served nor filed an answer to the verified petition as directed, nor requested additional time in which to do so. Accordingly, by Order dated June 30, 2021, in *In re Talcott*, 2020-07319, the Order of the Supreme Court of the State of New York Appellate Division: Second Judicial Department granted the Grievance Committee's motion, the charges in the verified petition dated May 4, 2020, were deemed established, and effective immediately, Mr. Talcott was disbarred from the practice of law in the State of New York.

This action is taken pursuant to the provisions of 35 U.S.C. § 32 and 37 C.F.R. § 11.24. Disciplinary decisions are available for public review at the Office of Enrollment and Discipline's FOIA Reading Room, located at: <https://foiadocuments.uspto.gov/oed/>.

4. The OED Director give notice of the public discipline, pursuant to 37 C.F.R. § 11.59, and the reasons for the discipline to disciplinary enforcement agencies in the state(s) where Respondent is admitted to practice, to courts where Respondent is known to be admitted, and to the public;
5. Respondent shall comply with the duties enumerated in 37 C.F.R. § 11.58;

6. The USPTO is hereby authorized to disable or suspend any USPTO.gov accounts registered to Respondent as of the date of this Final Order (including, but not limited to, all accounts that Respondent has ever established, sponsored, or used in connection with any patent, trademark, or other matter before the USPTO);

7. Respondent shall not apply for a USPTO verified Electronic System account, shall not obtain a USPTO verified Electronic System account, nor shall he have his name added to a USPTO verified Electronic System account, unless and until he is reinstated to practice before the USPTO;

8. Respondent is prohibited from using, assessing, or assisting others in using or accessing any USPTO.gov account(s) or other USPTO filing systems for preparing or filing documents with the USPTO;

9. Until a petition seeking Respondent's reinstatement to practice before the USPTO is granted pursuant to 37 C.F.R. § 11.60, Respondent shall be prohibited, and the USPTO is authorized to disallow Respondent, from the following: (1) opening or activating any USPTO.gov account(s) to be used for preparing or filing documents with the USPTO; (2) applying for, or attempting to apply for any USPTO.gov account(s) to be used for preparing or filing documents with the USPTO; (3) verifying, or attempting to verify, any other person's credentials in connection with USPTO.gov account(s) to be used for preparing or filing documents with the USPTO; and (4) sponsoring or attempting to sponsor USPTO.gov account(s) to be used for preparing or filing documents with the USPTO; and

10. Nothing herein shall obligate the USPTO to take action, *sua sponte*, to re-activate any USPTO.gov account disabled or suspended pursuant to this order; rather, it is

Respondent's sole responsibility to initiate any such re-activation of any such USPTO.gov account.

Users,
Choe, Tricia

Digitally signed by
Users, Choe, Tricia
Date: 2025.05.02
08:34:57 -04'00'

Date

Tricia Choe
Associate General Counsel for General Law
United States Patent and Trademark Office

on delegated authority by

Coke Morgan Stewart
Acting Under Secretary of Commerce for Intellectual Property and
Acting Director of the United States Patent and Trademark Office

CERTIFICATE OF SERVICE

I hereby certify that the foregoing Final Order Pursuant to 37 C.F.R. § 11.24 was sent, on this day, to parties in the manner indicated below:

Via first-class certified mail, return receipt requested, to the Respondent at the most recent address provided to the OED Director pursuant to 37 C.F.R. § 11.11(a):

Mr. Kelly D. Talcott
The Law Offices of Kelly D. Talcott
34 Grove Street, P.O. Box 43
Sea Cliff, New York 11579

and to where the OED Director reasonably believes Respondent receives mail:

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Via e-mail to the OED Director:

Sydney Johnson
[REDACTED]
Counsel for the OED Director

5/2/2025
Date


United States Patent and Trademark Office
P.O. Box 1450
Alexandria, VA 22313-1450